

Case	Title / Nature of Case
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2:00 PM

LINE: 1

23-CIV-01407

ROSARIO CUSTODIO, ET AL VS. BRIUS, LLC, ET AL

ROSARIO CUSTODIO
BRIUS, LLC

JAY P RENNEISEN
LINDSEY ROMANO

PLAINTIFFS' MOTION FOR DISCOVERY REFEREE

TENTATIVE RULING:

For the reasons stated below, Plaintiffs' Motion for Appointment of a Discovery Referee is **GRANTED IN PART**.

Code of Civil Procedure section 639, subdivision (a)(5), permits the Court to appoint a discovery referee where the particular circumstances establish that a reference is necessary. A nonconsensual discovery reference requires exceptional circumstances specific to the case. (Code Civ. Proc., § 639, subd. (d)(2); Cal. Rules of Court, rule 3.920(c); *Taggares v. Superior Court* (1998) 62 Cal.App.4th 94, 105; *Hood v. Superior Court* (1999) 72 Cal.App.4th 446, 449.)

The Court finds exceptional circumstances warranting a limited discovery reference. The discovery at issue was first noticed in December 2022 and includes numerous percipient, management, and PMQ depositions. The parties have engaged in extensive meet-and-confer efforts; deposition dates were offered and later withdrawn; Defendants previously moved to substantially limit the noticed depositions; that motion was denied without prejudice; and Defendants thereafter filed a renewed motion for protective order that is presently set for hearing on February 1, 2027. Defendants have also taken the position that deponents subject to that motion will not be produced while it remains pending. Plaintiffs have identified additional disputes concerning PMQ and individual depositions, document production, written discovery, verifications, and inspection. The case is also approaching the applicable five-year trial period.

These circumstances distinguish this matter from a routine or isolated discovery dispute. The present disputes involve multiple issues and are part of an ongoing continuum of discovery disputes requiring substantial judicial management. (*Taggares*, *supra*, 62 Cal.App.4th at p. 105; see *DeBlase v. Superior Court* (1996) 41 Cal.App.4th 1279, 1286-1287.)

The Court, however, declines at this time to refer every discovery dispute that may arise in the action. The reference shall be limited to the pending renewed motion for protective order and disputes arising from the outstanding deposition, PMQ, document-production, written-discovery, verification, and inspection issues identified in Plaintiffs' moving and reply papers. Any unrelated future discovery dispute shall remain with the Court unless otherwise ordered.

The specific referee and terms of compensation will be determined by further written order. The parties shall meet and confer regarding selection of a referee. If they cannot agree, each side may submit no more than three nominees pursuant to Code of Civil Procedure section 640, subdivision (b), together with the proposed hourly rate and availability, no later than **September 17, 2026**. Any party claiming economic inability to pay a pro rata share of the referee's fees shall submit supporting evidence by the same date. Plaintiffs shall thereafter lodge a proposed order complying with Code of Civil Procedure section 639, subdivision (d), and California Rules of Court, rules 3.922 through 3.924.

Pending entry of the appointment order, the parties remain subject to all existing discovery obligations and orders. The filing or pendency of a motion for protective order does not itself constitute a stay of discovery.

The referee shall report findings and recommendations to the Court. The Court retains ultimate authority over the discovery disputes and any recommendations of the referee.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiffs shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

2:00 PM

LINE: 2

23-CIV-03335

WILLIAM ROGERS, ET AL VS. TRANSITAMERICA SERVICES, INC., ET AL

WILLIAM ROGERS
TRANSITAMERICA SERVICES, INC.

ANDREW P MCDEVITT
STEPHANIE L QUINN

DEFENDANT PENINSULA CORRIDOR JOINT POWERS BORD, TRANSSIT AMERICA SERVICES, INC., and HERZOG TRANSIT SERVICES, INC.’S MOTION TO COMPEL COMPLIANCE WITH SUBPOENA BY THIRD PARTY BALFOUR BEATTY INFRASTRUCTURE INC.

TENTATIVE RULING:

For the reasons stated below, Defendants Peninsula Corridor Joint Powers Board, Transitamerica Services, Inc., and Herzog Transit Services, Inc.’s Motion to Compel Compliance with Subpoena by Balfour Beatty Infrastructure, Inc. is **GRANTED IN PART** and **DENIED IN PART**. Defendants’ request for monetary sanctions is **GRANTED IN PART** in the amount of \$1,000.

BACKGROUND

This is a personal injury and negligence action arising from injuries sustained by Plaintiff William Rogers, an employee of MRS, while working on Caltrain property. Plaintiff fell through timber planking on the Oregon Expressway Bridge onto the Oregon Expressway below on August 25, 2022.

MOTION TO COMPEL

On February 19, 2025, Defendants served Balfour Beatty Infrastructure, Inc. (“BBI”), then a nonparty, with a deposition subpoena seeking 17 categories of documents. BBI served objections in March 2025. After several months of meet-and-confer efforts and extensions during which BBI represented that it was searching for and would produce responsive documents, Defendants filed the present Motion on August 7, 2025, when BBI had not produced responsive documents. In October 2025, Defendants filed a Cross-Complaint naming BBI as a cross-defendant.

In August 2026, after becoming a party, BBI served Amended Responses to the subpoena and represented that it had produced all responsive, nonprivileged documents within its possession, custody, or control or, as to certain requests, that responsive documents could not be located or no longer existed. BBI contends that its subsequent production renders the Motion moot and that Defendants must now proceed exclusively through party discovery.

The Court is not persuaded that BBI’s subsequent joinder as a party divested the Court of authority to rule on a motion that was properly filed to enforce a subpoena served while BBI was a nonparty. Code of Civil Procedure section 1987.1 expressly authorizes the Court, on a motion concerning a subpoena, to direct